

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

-----X INDEX NO.:
STEVEN WALTERS,

PLAINTIFF,

SUMMONS

**CITY OF NEW YORK, PO FLORES,
PO JOHN DOE I, PO JOHN DOE II in
their individual and official capacity,**

DEFENDANTS.

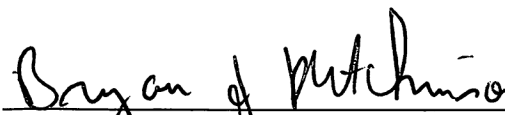
-----X DEMAND FOR JURY TRIAL

TO THE ABOVE NAMED DEFENDANT(S):

YOU ARE HEREBY SUMMONED to appear in this action by serving a Notice of Appearance on plaintiff's attorneys within 20 days after service of this Summons, exclusive of the day of service, or within 30 days after service is complete if this Summons is not personally delivered to you within the State of New York. In case of your failure to answer, Judgment will be taken against you by default for the relief demanded in the Complaint.

The basis of venue is plaintiff's residence. Plaintiff resides 3379 Capuchin Way, Bronx, NY 10467,

Dated: Bronx, New York
December 9, 2020



Bryan J. Hutchinson, Esq.
Attorney for Plaintiff
Law Office of Bryan J. Hutchinson, PLLC
1443 E. Gun Hill Rd, Ste. 2
Bronx, New York 10469
Tel: (718) 671-0900

To Defendants:

James E. Johnson, Esq.
Corporation Counsel of the City of New York
New York City Law Department
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

-----X INDEX NO.
STEVEN WALTERS,

PLAINTIFF,

V.

VERIFIED COMPLAINT

**CITY OF NEW YORK, PO FLORES, PO JOHN DOE I,
AND PO JOHN DOE II, in their individual and official
capacity,**

DEFENDANTS.

-----X

Plaintiff, Steven Walters, as and for his complaint, respectfully alleges as follows:

1. At all times herein mentioned, Steven Walters (hereinafter sometimes referred to as “Plaintiff or Mr. Walters”) was a resident of the County of Bronx, City and State of New York.
2. At all times herein mentioned, defendant PO FLORES, a male Hispanic, was a Police Officer employed by defendant City of New York Police Department.
3. At all times herein mentioned, defendant PO JOHN DOE I, a male Caucasian, was a Police Officer employed by defendant City of New York Police Department.
4. At all times herein mentioned, defendant PO JOHN DOE II, a female was a Police Officer employed by defendant City of New York Police Department.
5. At all times herein mentioned, the above-mentioned police officers were on duty and acting in the court of their employment as police officer employed by defendant City of New York Police Department.
6. At all times herein mentioned, defendant the City of New York was and is a municipal corporation duly organized and existing under the laws of the State of New York.
7. At all times herein mentioned, defendant the City of New York maintained and was responsible for

overseeing, supervising and regulating all conduct engaged in and undertaken by the City of New York Police Department.

8. At all times herein mentioned, defendant the City of New York maintained and was responsible for overseeing, supervising and regulating all conduct engaged in by the City of New York Police personnel while such personnel were engaged in police business, including that of defendants' PO FLORES, PO JOHN DOE I and PO JOHN DOE II.

9. Annexed hereto as Exhibit A is a Notice of Claim served on defendants City of New York, PO FLORES, PO JOHN DOE I and PO JOHN DOE II, on July 06, 2020.

Defendant, the City of New York, has neglected and refused to make an adjustment in payment thereof within more than 30 days after service of the Notice of Claim. Thirty days have elapsed since such service of the notices of claim and payment thereof has been rejected or refused.

FACTUAL ALLEGATIONS

10. That on or about May 4, 2020 at approximately 10:00 A.M., while the plaintiff Steven Walters was lawfully and rightfully buying groceries in Cherry Valley Marketplace, located at 801 E. Gun Hill Road, Bronx, NY 10467, the Plaintiff was caused to sustain injuries by PO FLORES, PO JOHN DOE I and PO JOHN DOE II when he was assaulted, battered and handcuffed, forcibly searched, illegally detained and unlawfully arrested at which time and place, police officers, and/or agents, servants and/or employees of The City of New York and the New York City Police Department, without probable cause, justification or provocation, arrested, detained and assaulted and battered said claimant and detained him. The New York City Police Department was negligent in the hiring, training and retention of its officers which were involved in the within occurrence.

11. Defendants PO FLORES, PO JOHN DOE I and PO JOHN DOE II were on duty and working as a police officers employed by defendant City of New York Police Department at the time of the aforementioned assault and battery upon the Plaintiff.

12. While PO FLORES and PO JOHN DOE I were escorting Steven Walters out of the supermarket, Mr. Walters stopped and asked to speak to the manager and was pushed, tased, and assaulted by PO FLORES and was handcuffed, placed in an ambulance, and detained at Jacobi Medical Center, in Bronx County, New York.

13. This is a civil rights action in which the plaintiff Steven Walters seeks relief for the Defendants' violation of his rights secured by the Civil Rights Act of 1866 and 1871, 42 U.S.C. §§1981 and 1983 and of the rights secured by the United States Constitution, Amendments Four and the common law of the State of New York.

14. Steven Walters seeks damages, both compensatory and punitive, affirmative and equitable relief, an award of attorneys' fees and costs and such other relief as this Court deems equitable and just.

NOTICE OF CLAIM

15. That on or about July 7, 2020, a Notice of Claim, was served upon the Comptroller of the City of New York. The case has been assigned claim number 2020PI017808 by the City of New York, Office of the Comptroller, Claims and Adjudication.

16. The 50-H hearing of plaintiff Steven Walters was conducted on November 25, 2020.

17. That more than thirty days have elapsed since the Notice of Claim has been served upon the Defendants and the said Defendants have neglected or refused to make any adjustment or payment thereof.

18. That this action is commenced within one year and ninety days after the causes of action arose and other causes of action within three (3) years when said action arose.

AS AND FOR A FIRST CAUSE OF ACTION ***(42 USC § 1983 And the Use of Excessive and Unreasonable Force)***

19. Plaintiff repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth herein.

20. Steven Walter's rights have been violated under the Fourth and Eighth Amendment of the United

States Constitution made applicable to the states via the Fourteenth Amendment pursuant to 42 U.S.C. § 1983, in that Mr. Walters was unlawfully subjected to excessive and unreasonable force by defendant PO Flores and unidentified police officers, who either intentionally, recklessly or negligently assaulted and battered plaintiff.

21. That the said assault and battery of the plaintiff Steven Walters was caused by defendant PO Flores and unidentified police officers without authority of law and without any reasonable necessity to use any force much less the excessive force that they employed, and the force employed was used without legal justification, without Plaintiff's consent, with malice and with an intent to inflict pain and suffering.

22. As a direct result of defendant PO Flores and unidentified police officers' actions, Steven Walters was deprived of rights, privileges and immunities under the Fourth Amendment of the United States Constitution being more particularly Mr. Walter's rights to be free from the use of excessive and unreasonable force.

23. That PO Flores and unidentified police officers who witnessed the use of excessive force against Steven Walters and who had a reasonable opportunity to intervene and prevent him being injured and who failed to do so are liable to Mr. Walters via their failure to exercise their affirmative duty to intervene.

24. That by reason of the unlawful use of excessive and unreasonable force, Mr. Walters was harmed physically, requiring him to received medical attention and he was subjected to physical pain, humiliation, embarrassment, anxiety, closed confinement, and that he will be subjected to continuing physical harm, pain, future surgeries and expenses for and will continue to incur medical expenses, and that Plaintiff was otherwise harmed.

AS AND FOR A SECOND CAUSE OF ACTION
(Liability of Defendant City for Constitutional Violations – Monell Claim)

25. Plaintiff repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

26. At all times materials to this complaint, the defendant City of New York, acting through its police department, the New York City Police Department, had in effect de facto policies, practices, customs and usages that were a direct and proximate cause of the unconstitutional conduct of the Defendant police officers.

27. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included but not limited to assault and battering persons with justification thereto, and thereafter concealing same to superiors, I.A.B. and CCRB .

28. The defendant City of New York, failed to effectively screen, hire, train, supervise and discipline its police officers and employees, including the defendant PO Flores and unidentified officer(s) herein, for their refusal to report assault and battery of a person by fellow officers, where there was no justification thereof.

29. The existence of such de facto policies and/or well-settled and widespread customs and practices has been known to supervisory and police-making officers and officials of the Police Department and the City of New York for a substantial period of time.

30. Despite knowledge of such illegal de facto policies and practices, the supervisory and policy-making officers and officials of the Police Department and the City of New York have not taken adequate steps to terminate these policies and practices, have not disciplined individuals who engage in such practices, or otherwise properly trained police officers with regard to the constitutional and statutory limits on the exercise of their authority, and have instead sanctioned and ratified these policies, customs and practices through their deliberate indifference to or negligent disregard of the effect of said policies, customs and practices upon the constitutional rights of persons in the City of New York.

31. Defendant City of New York as well as unidentified police officers who were supervisors and final decision makers as a matter of policy and practice, have with deliberate indifference failed to properly train, discipline, sanction and retrain police officers, despite their knowledge of the recurring problem of

violations of the Constitutional rights of citizens by seizing persons, assaulting persons by the use of excessive and unlawful force, and thereafter falsifying official records etc., and in so failing, the defendant City of New York has caused, encouraged, condoned and allowed the defendants in this case to engage in the aforementioned unlawful conduct without fear of consequences for their illegal acts which did cause the plaintiff to be subjected to deprivations of his civil rights.

32. That the defendant municipality, City of New York, alerted to the existence of a significant number of illegal seizures and arrests, by its police officers, by repeated complaints, of false arrest, and the use of excessive and unlawful force, exhibited deliberate indifference thereto in that it was obvious to the City of New York that there was a need for more and/or improved supervision of police officers in order to protect against constitutional violations and in spite of repeated complaints of civil rights violations, there have been no meaningful attempts on the part of City of New York to investigate or forestall further incidents.

33. That the defendant municipality, City of New York, has also been alerted by its employee officers to cover up the use of excessive and unlawful force by its police officers, and that the culture of violence by NYPD has been allowed to exist without repercussions to the officers who engaged in such behavior. This behavior was permitted to continue in the case at bar.

34. Moreover, the action of the individual defendants resulted from and were taken pursuant to a de facto policy and/or well-settled and widespread custom and practice of the City of New York, which is implemented by police officers of said City. Where the use of unlawful and excessive force is concealed by a conscious effort by all officers to conspire and thus conceal such conduct. Where the upward mobility of the officers within ranks is accomplished. This conduct is open and notorious and frequently used by officers to conceal improper conduct by said officers. This is a well-established practice and custom of the defendant City of New York police department which has been the subject of a voluminous number of civil rights actions.

35. The existence of such de facto policies and/or well-settled and widespread custom and practices have been known to supervisory and police-making officers and officials of the Police Department of the City of New York for a substantial period.

36. Each year, thousands of civil rights actions alleging illegal seizure and false arrest and unlawful imprisonment and the use of excessive and unlawful force by police officers are brought and “settled” by the defendant City of New York. Each year, the defendant, City of New York spends millions of dollars to settle and/or satisfy said actions. These matters contained allegations of false arrest, unlawful and excessive force and unlawful imprisonment by the defendant City of New York police officers. Furthermore, these facts alone substantiate the fact that not only is the defendant City of New York aware of said police practices and usages, but more so, that defendant City of New York has failed to stop said practices and has condoned said practices and usages.

37. Upon information and belief, and without limiting the foregoing, the City of New York has failed to properly train, instruct, and discipline police officers with regards to the duty to intervene and to report violations of civil rights.

38. Upon information and belief, and without limiting the foregoing, the City of New York has failed to properly train, instruct, and discipline police officers with regards to falsifying police reports and providing misleading information to prosecutors.

39. Upon information and belief, and without limiting the foregoing, the City of New York has failed to properly train, instruct, and discipline police officers with the use of excessive and unlawful force.

40. Upon information and belief, and without limiting the foregoing, the City of New York has failed to properly train, instruct, and discipline supervising officers with regards to their review of charges and reports of matters involving injury to persons and of use of force and excessive force thereon.

41. Upon information and belief, and without limiting the foregoing, the City of New York has failed to properly instruct, and discipline police officers with regards to perjurious testimony and police reports.

42. Upon information and belief, and without limiting the foregoing, the City of New York has permitted police officers to maintain the “blue wall of silence” and to conceal and fail to report the misconduct of other police officers.

43. Upon information and belief, and without limiting the foregoing, the City of New York has structured procedures and standards at the Civilian Complaint Review Board, the Office of Chief of Department, and Internal Affairs in such a manner that an officer’s denial of the charges is ordinarily sufficient to remove the threat of any discipline or restraint upon the officer’s conduct and to prevent any objective review of the officer’s conduct.

44. Upon information and belief, and without limiting the foregoing, the City of New York has failed to require police officers to accept independent and objective review of civilian complaints and imposition of discipline.

45. Upon information and belief, and without limiting the foregoing, the City of New York has failed to properly structure the police department to review and discipline the existence of unlawful conspiracy by defendant officers.

47. Defendant City of New York is directly liable and responsible for the acts of defendant P.O. Flores and unidentified officers because it has repeatedly and knowingly failed to properly supervise, train and discipline said officers and because it repeatedly and knowingly failed to enforce the rules and regulations of the New York City Police Department and the laws of the State of New York and the United States.

48. The knowing and repeated failures of the defendant City of New York to properly supervise, train and discipline said officers caused the injuries to Plaintiff alleged herein.

49. Upon information and belief, defendant City of New York knew or should have known that the acts alleged herein would deprive Plaintiff of his rights without due process of law, in violation of the First, Fourth, Fifth, Ninth, and Fourteenth Amendments to the United States Constitution and Article 1, §§ 1,

6, 8, 9, 11 and 12 of the Constitution of the State of New York, including, without limitation, such rights as plaintiffs' rights, right to be free from the use of excessive force, right to due process, and right to equal protection of the laws.

50. As a result of the foregoing conscious policies, practices, customs and/or usages, defendant City of New York has permitted and allowed the employment and retention of individuals as police officers and employees whose individual circumstances place the public or segments thereof at substantial risk of being the victims of unlawful and/or unreasonable behavior. Such policies, practices customs and/or usages are a direct and proximate cause of the conduct alleged herein and otherwise a direct and proximate cause of the injuries to the Plaintiff herein.

51. As a result of the foregoing, Plaintiff sustained great emotional and physical injuries, was subject to great humiliation, and was otherwise harmed, damaged and injured.

AS AND FOR A THIRD CAUSE OF ACTION
(NYS Constitutional Violations)

52. Plaintiff repeats, reiterates and incorporates by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

53. Defendants subjected Plaintiff to the foregoing conspiracies, acts, and omissions to act without due process of law, thereby depriving Plaintiff of rights, privileges and immunities secured by Article 1, §§ 1, 6, 8, 9, 11 and 12 of the New York State Constitution, including, without limitation, the following deprivations of his rights, privileges and immunities:

(a) Plaintiff was deprived of his right to be free from the use of excessive or unreasonable force in the course of either a lawful or an unlawful seizure, in violation of § 12 of the Constitution of the State of New York; and

(b) Plaintiff was deprived of his rights to liberty, without due process of law, in violation of § 6 of the Constitution of the State of New York.

54. As a result of the Defendants' conduct, Steven Walters, sustained great emotional and physical injury including mental suffering, humiliation, embarrassment, and was otherwise harmed, damaged and injured.

AS AND FOR A FOURTH CAUSE OF ACTION
(Intentional Infliction of Emotional Distress)

55. Plaintiff repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth herein.

56. By the actions described above, PO FLORES, PO JOHN DOE I and PO JOHN DOE II, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which intentionally caused severe emotion distress to Plaintiff.

The acts and conduct of the Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

57. As a result of the foregoing, Plaintiff sustained great emotional injuries, was subject to great humiliation, and was otherwise harmed, damaged and injured.

AS AND FOR A FIFTH CAUSE OF ACTION
(Negligence)

58. Plaintiff repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth herein.

59. Defendants, by their conduct negligently failed to use due care in the performance of their duties in that they failed to perform their duties as reasonable and prudent officers where the defendant P.O. Flores viciously assaulted and battered persons and other defendant officers recklessly and negligently ignored same.

60. Defendants, by their conduct negligently failed to use due care in the performance of their duties in that they failed to perform their duties as reasonable and prudent officers were given the facts herein no

officer intervened to stop either the initial unlawful use of excessive force.

61. Defendants, by their aforementioned acts, negligently failed to use due care in the performance of their duties in that they hired and retained incompetent and unfit police officers whom they knew, or should have known, possessed dangerous propensities as well as a propensity to conspire against innocent persons where said officers would conspire and falsely arrest persons or fail to report any person they have injured, in an effort to conceal their assaultive conduct and their unlawful use of force, and excessive unreasonable use of force.

62. Defendants, by their aforementioned acts, negligently failed to use due care in the performance of their duties in that they failed to exercise care in instructing police officers, officials, supervisors, and civilian employees as to their department, behavior, and conduct, including (but not limited to) the obligation of police officers to intervene, as an affirmative duty to protect citizens threatened with deprivation of constitutional rights by other New York City police officers.

63. Defendants, by their aforementioned acts, negligently failed to use due care in the performance of their duties in that they failed to establish meaningful procedures for disciplining officers and other personnel who have engaged in such acts of misconduct.

64. Defendant officers acting jointly and severally, negligently caused extreme emotional distress to Plaintiff. The acts and conduct of the Defendants were reasonably foreseeable and were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

65. All of these acts were performed without any negligence on the part of the Plaintiff and were the proximate cause of his injuries.

66. As a result of the foregoing, Plaintiff sustained great emotional and physical injuries.

AS AND FOR A SIXTH CAUSE OF ACTION***(Failure to Intervene)***

67. Plaintiff repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

68. PO JOHN DOE I and PO JOHN DOE II, each individual defendant officer had an affirmative duty to intervene on Plaintiff's behalf to prevent the violation of his constitutional rights.

69. Upon information and belief PO JOHN DOE II as the supervising offer of the 47th Precinct, had an affirmative duty to intervene on Plaintiff's behalf to prevent the violation of his constitutional rights.

70. The individual defendant officers failed to intervene on Plaintiff's behalf to prevent the violation of his constitutional rights despite having a realistic opportunity to do so.

71. As a result of the aforementioned conduct of the individual defendants and other unidentified officers, Plaintiff's constitutional rights were violated, and they were subjected to use of excessive force and other violations of his constitutional rights.

AS AND FOR A SEVENTH CAUSE OF ACTION***(Assault and Battery by PO FLORES)***

72. Plaintiff repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

73. PO FLORES while in the scope of his employment, maliciously, willfully and intentionally committed assault and battery upon the Plaintiff with apparent ability and objective to cause imminent harm and offense bodily harm and subjected Plaintiff to physical injury and harm and embarrassment and humiliation.

74. PO FLORES intentional willfully and maliciously battered Plaintiff, when he, in a hostile and offensive manner struck Plaintiff without his consent and with the intentions of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery.

75. The acts and conduct of PO FLORES and other unidentified police officers were the direct and

proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

76. As a result of the foregoing, Plaintiff sustained great emotional injuries, was subject to great humiliation, physically harmed and was otherwise harmed, damaged and injured.

AS AND FOR A EIGHTH CAUSE OF ACTION
(NY State Law Negligent Hiring and Retention)

77. Plaintiffs repeats, reiterates and incorporates by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

78. Upon information and belief, defendant City of New York failed to use reasonable care in the hiring and retention of the aforesaid Defendants who conducted and participated in the use of excessive force and other violations of Plaintiff's civil rights.

79. Defendant City of New York knew, or should have known in the exercise of reasonable care, the propensities of the defendant officers and other unidentified officers, to engage in the wrongful conduct heretofore alleged in this Complaint.

AS AND FOR A NINTH CAUSE OF ACTION
(Negligent Training, Supervision and Entrustment)

80. Plaintiff repeat, reiterate and incorporate by reference each and every allegation contained in the prior paragraphs with the same force and effect as is more fully and at length set forth set forth herein.

81. Defendant City of New York was negligent in its screening and hiring of Defendants.

82. Upon information and belief, defendant the City of New York intentionally, knowingly or with deliberate indifference failed to properly train or supervise their police officers, thereby allowing defendants PO FLORES, PO JOHN DOE I and PO JOHN DOE II to engage in the improper conduct complained of.

83. Upon information and belief, defendant the City of New York intentionally, knowingly or with deliberate indifference failed to properly train or supervise their police officers, thereby allowing defendants PO FLORES, PO JOHN DOE I and PO JOHN DOE II to engage in the improper conduct

complained of.

84. Upon information and belief in allowing defendants PO FLORES, PO JOHN DOE I and PO JOHN DOE II to continue their employment as a City of New York Police Department, subsequent to numerous prior incidents similar to the incident complained of, and after having been placed on notice, either actual or constructive, of such prior similar incidents, defendant the City of New York ratified defendants PO FLORES, PO JOHN DOE I and PO JOHN DOE II misuse and abuse of their power and authority as a police officers employed by defendant City of New York.

85. Upon information defendant City of New York failed to provide adequate training to defendants' PO FLORES, PO JOHN DOE I and PO JOHN DOE II.

86. Upon information and belief, defendants' PO FLORES, PO JOHN DOE I and PO JOHN DOE II had numerous prior incidents similar to the incident complained of, and after having been placed on notice, either actual or constructive, of such prior similar incidents, defendant the City of New York failed to provide adequate supervision of defendants' PO FLORES, PO JOHN DOE I and PO JOHN DOE II.

87. Upon information defendant City of New York was on actual or constructive notice of Defendants', PO FLORES, PO JOHN DOE I and PO JOHN DOE II, propensity for excessive force and violence and intentionally and recklessly retained them as police officers with the City of New York Police Department.

88. Upon information defendant City of New York was on actual or constructive notice of defendants, PO FLORES, PO JOHN DOE I and PO JOHN DOE II, propensity for excessive force and violence and intentionally and recklessly entrusted PO FLORES, PO JOHN DOE I and PO JOHN DOE II with a weapon as a police officer with the City of New York Police Department.

89. By reason of the tortious conduct of defendants, the Plaintiff suffered great intimidation and fear, sustained great physical injury, conscious pain and suffering, mental and emotional injuries and was otherwise harmed, damaged and injured.

90. For all claims arising under New York State Law, defendants are jointly and severally liable to the Plaintiff inasmuch as this action arises out of the exceptions set forth in § 1602, subdivisions 5, 7, and 11 of the Civil Practice Law and Rules.

WHEREFORE, the Plaintiff demands judgment:

(a) That this Court grant final judgment against Defendants, jointly and severally, as and for Plaintiff Steven Walters in an amount that exceed the jurisdiction of all lower courts for compensatory damages and for punitive damages.

(b) That this Court grant final judgment in favor of Plaintiff for all costs and disbursements of this action together with reasonable attorney's fees pursuant to by 42 USCA § 1988.

(c) That this Court grant such other and further relief as the Court deems just and proper.

Dated: Bronx, NY
February 10, 2021

INDIVIDUAL VERIFICATION

STATE OF NEW YORK

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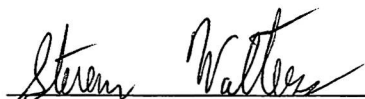
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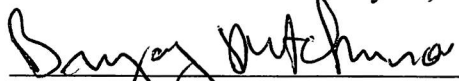
COUNTY OF BRONX

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Steven Walters, being duly sworn, deposes and says, that deponent is the **PLAINTIFF** in the within action; that deponent has read the foregoing **VERIFID COMPLAINT** and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.


Steven Walters**Plaintiff**

Sworn to before me February 10, 2021


Bryan J. Hutchinson**Notary Public State of New York****Reg. No. 02HU6047247****Qualified in Bronx County****Commission Expires Aug. 28, 2022**

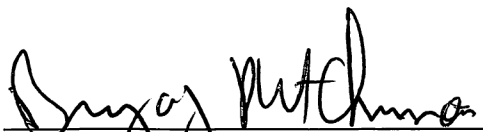
ATTORNEY CERTIFICATION

STATE OF NEW YORK)
COUNTY OF BRONX)

The undersigned attorney does hereby certify:

I am an attorney duly admitted to practice law before the Courts of the State of New York and I do hereby provide this signed certification pursuant to 22 NYCRR Part 130-1.1(c) with regard to the following documents served, filed and submitted herewith in this **Verified Complaint**.

Dated: Bronx, New York
February 10, 2021

A handwritten signature in black ink, appearing to read "Bryan J. Hutchinson", is written over a horizontal line.

Bryan J. Hutchinson, Esq.
Law Office of Bryan J. Hutchinson, PLLC
Attorney for **Plaintiff**
1443 E. Gun Hill Rd, Suite 2
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Tel: (718) 671-0900

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

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STEVEN WALTERS,

PLAINTIFF,

SUMMONS

**CITY OF NEW YORK, PO FLORES,
PO JOHN DOE I, PO JOHN DOE II in
their individual and official capacity,**

DEFENDANTS.

-----X DEMAND FOR JURY TRIAL

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SUMMONS AND VERIFIED COMPLAINT

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To Defendants:

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